

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 16  
JUDICIAL OFFICER: HON. BENJAMIN T REYES II  
HEARING DATE: 02/18/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN  
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 ([Dept16@contracosta.courts.ca.gov](mailto:Dept16@contracosta.courts.ca.gov)) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

**ID: 161 950 4895**

**Password: 812674**

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| <b>Courtroom Clerk's Session</b> |
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| <p>1. 9:00 AM CASE NUMBER: MSC21-01215<br/>CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH<br/>HEARING ON ORDER TO SHOW CAUSE IN RE: RE DISMISSAL FOR FAILURE TO APPEAR BY PLAINTIFF'S COUNSEL DAWN M. SMITH AT THE 12/19/25 CMC AND TRIAL SETTING CONFERENCE.<br/>FILED BY:</p> |
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**\*TENTATIVE RULING:\***

Upon review of the Declaration of Counsel Dawn M. Smith filed on December 22, 2025, the Court finds good cause to discharge the Order to Show Cause. This Order to Show Cause re dismissal is discharged.